

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 20-12

NNABUGWU CHINEDU ANDREW, AVERS LOGISTICS LTD. and CJ DELUZ NIGERIA LTD.,

Complainants,

— vs. —

MARINE TRANSPORT LOGISTICS, INC., ALLA SOLOVYEVA and RAYA BAKHIREV,

Respondents.

COMPLAINANTS' MOTION FOR A REVISED SCHEDULING ORDER

Pursuant to Rules 69, 71, and 102, of the Federal Maritime Commission's (the "Commission") Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainants, through their Counsel, Marcus A. Nussbaum, Esq. respectfully submit this motion to the Presiding Officer, Chief Administrative Law Judge Erin M. Wirth, within which complainants request that the Presiding Officer revise the Scheduling Order of September 30, 2020 (as modified by Order of December 10, 2020) in order to allow for additional time for the completion of respondents' depositions, completion of discovery and filing of Proposed Findings of Fact, for good cause as set forth in detail below.

ARGUMENT

As the Presiding Officer is aware, the Scheduling Order of September 30, 2020 provided for the following dates:

November 16, 2020	Serve written discovery including interrogatories, notices to admit, and document demands.
-------------------	--

December 14, 2020	Respond to written discovery including interrogatories, notices to admit, and document demands.
January 15, 2021	All depositions completed.
January 25, 2021	All discovery completed.
February 22, 2021	Complainant files brief with proposed findings of fact and appendix.
March 22, 2021	Respondent files opposition brief with proposed findings of fact and responses to Complainant's proposed findings of fact, and appendix.
April 5, 2021	Complainant files reply brief with responses to Respondent's proposed findings of fact.

The Presiding Officer may also recall that respondents' time to written discovery was extended after respondents filed a motion on consent of complainants, which resulted in an Order on December 10, 2020 extending the date of respondents to file their responses to December 30, 2020. As of the time of this writing, the parties have exchanged documents and have scheduled the deposition of complainants for January 15, 2021.

As to the depositions of all respondents, the dates for completion of discovery, and all other subsequent dates, the undersigned counsel for complainants has conferred with counsel for respondents who has consented to complainants' request for a revision of the Scheduling Order. For the reasons below, Complainants request that the Presiding Officer grant this motion and issue a Revised Scheduling Order as follows:

- April 15, 2021 Depositions of Respondents shall be completed.
- April 25, 2021 All discovery completed.
- May 25, 2021 Complainant files brief with proposed findings of fact and appendix.
- June 25, 2021 Respondent files opposition brief with proposed findings of fact and responses to Complainant's proposed findings of fact, and appendix.

- July 13, 2021 Complainant files reply brief with responses to Respondent's proposed findings of fact.

It is respectfully submitted that good cause exists for the instant application. The reason for this includes the fact that respondents' recent document production is voluminous and requires additional time to review before the depositions of respondents. Since complainants are overseas and are six (6) hours ahead, there is a limited number of hours each day within which the undersigned may review these documents together with complainants (which is also slowed down due to complainants' limited command of the English language). Complainants would have had additional time absent the extension of time that complainants consented to for respondents' document production.

Additionally, the undersigned counsel has a scheduling conflict arising from a federal trial in a Hague Convention matter in late January, which the Court will not adjourn and which requires extensive pre-trial preparation. That case is for the return of a child to a member country which requires expedited proceedings.

Further, the undersigned counsel and counsel for respondents are both counsel of record in the matter of *MAVL Capital Inc. v. Marine Transport Logistics et al.*, (FMC Docket No.: 16-16). As the Presiding Officer is aware, the parties have a Remand Scheduling Order in that matter which overlaps with the dates in the instant matter, and with which the parties must comply with at the same time. In light of the heavy briefing schedule in both cases which overlap during this time, it is further respectfully submitted that the parties would benefit from the additional time in order to ensure that the appropriate time and due diligence are given to the briefing.

Accordingly, and in light of the foregoing and the good cause demonstrated above, complainants respectfully request that their motion be granted and that a Revised Scheduling Order be issued with the proposed dates set forth above.

WHEREFORE, it is respectfully requested that Complainants' instant motion for a Revised Scheduling Order be granted in its entirety, together with such other and further relief as the Presiding Officer may deem just and proper under the circumstances.

Dated: January 6, 2021
Brooklyn, New York

Respectfully Submitted,

/s/ Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 201-956-7071
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' MOTION FOR A REVISED SCHEDULING ORDER** upon Respondents' Counsel at the following address:

Garry Pogil, Esq.
112 West 34 Street, 18 Floor
New York, NY 10120

by email to: garry.pogil@gmail.com.

/s/ Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

Dated: Brooklyn, New York
January 6, 2021